

Rajendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 22 May 2018 · Writ-C No. 18445 of 2018 · **Writ disposed; 4.4(vi) objection to be decided in 15 days.**

HEADNOTE

Division Bench of the Allahabad High Court allowed Rajendra Singh's writ only by directing the electricity authorities to dispose of his pending objection under clause 4.4(vi) of the U.P. Electricity Supply Code, 2005 within 15 days in accordance with law, without examining the merits, and disposed of the petition with no costs.

FACTUAL SUMMARY

Rajendra Singh filed a civil writ in the Allahabad High Court against the State of Uttar Pradesh and six others, including the electricity department. He had lodged an objection under clause 4.4(vi) of the U.P. Electricity Supply Code, 2005, and sought a direction that the authorities decide it. Counsel for the petitioner and for the electricity department were heard. The Court did not examine the substance of the objection or any underlying billing or connection dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(vi)

time-bound disposal of clause 4.4(vi) objection

HOLDING

The Court allowed the writ prayer only to the extent of directing the respondent-authorities to dispose of the petitioner's pending objection under clause 4.4(vi) of the U.P. Electricity Supply Code, 2005 within 15 days in accordance with law, without deciding the merits of the objection. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Division Bench of the Allahabad High Court allowed Rajendra Singh's writ only by directing the electricity authorities to dispose of his pending objection under clause 4.4(vi) of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 4.4(VI) OBJECTION

Left to the respondent-authorities to dispose of within 15 days in accordance with law. ¶ 1